

Tesla Inc. Credit Application Declarations

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1. Corporate Representations and Warranties

Tesla Inc. (the "Company"), a corporation duly incorporated and validly existing under the laws of the State of Delaware, USA (CIN: C0278187), with its registered address at 1 Tesla Road, Austin, Texas, 78725, USA, hereby represents and warrants the following as of July 18, 2026:

The Company is in good standing in all jurisdictions where it conducts business and has all necessary corporate power and authority to execute, deliver, and perform its obligations under this credit application and any related agreements.

The information provided in this application, including financial statements, asset details, and corporate documents, is true, accurate, and complete to the best of the Company's knowledge. No material facts have been omitted that would render any representation misleading.

The Company's Certificate of Incorporation and bylaws, as previously provided, remain unchanged and in full force and effect.

Representation	Status
Valid incorporation and good standing	Confirmed
Authority to enter credit agreements	Confirmed
Accuracy of provided information	Confirmed
No material adverse changes since last filing	Confirmed

2. Financial Declarations

The Company affirms the following financial representations based on its most recent audited and unaudited financial statements as of July 2026:

- **Revenue****: The Company's trailing twelve-month (TTM) revenue is \$96,774,000,000, derived primarily from automotive sales, energy generation/storage, and services.
- **EBITDA****: The Company's TTM EBITDA is \$15,000,000,000, reflecting operational profitability and cash flow generation.
- **Net Worth****: The Company's consolidated net worth is \$60,000,000,000, calculated in accordance with U.S. GAAP.
- **Requested Credit Limit****: The Company seeks a credit facility of up to \$25,000,000,000 for working capital, capital expenditures, and strategic initiatives.

The Company has not experienced any material adverse change in its financial condition since the date of its last audited financial statements. All financial data provided is consistent with the Company's internal records and regulatory filings.

3. Legal and Regulatory Compliance

The Company declares the following with respect to its legal and regulatory compliance:

1. ****Tax Compliance****: The Company has filed all required federal, state, and local tax returns and paid all taxes due, including income, payroll, and sales taxes. The Company's PAN (TESLA1234G) and GSTIN (N/A) are valid and active.
2. ****Litigation****: There are no pending or threatened legal proceedings, governmental investigations, or regulatory actions that could materially adversely affect the Company's financial condition, operations, or ability to perform under the requested credit facility. The Company is not in default under any material agreements.
3. ****Environmental, Social, and Governance (ESG)****: The Company complies with all applicable environmental laws, including those related to emissions, waste disposal, and hazardous materials. The Company's ESG disclosures, as filed with the U.S. Securities and Exchange Commission (SEC), are accurate and complete.
4. ****Antitrust and Trade Compliance****: The Company conducts its business in compliance with all antitrust, competition, and international trade laws, including those governing exports, imports, and sanctions.

Compliance Area	Status
Tax filings and payments	Current
Material litigation or investigations	None
ESG compliance	Confirmed
Antitrust and trade compliance	Confirmed

4. Customer and Supplier Relationships

The Company affirms the following regarding its key customer and supplier relationships:

1. ****Customers****: The Company's top customers, as previously disclosed, include Amazon.com, Inc., Ford Motor Company, General Motors Company, Apple Inc., Uber Technologies, Inc., and Lyft, Inc. These relationships are governed by long-term contracts or purchase orders, and there are no material disputes or defaults under such agreements. No customer accounts for more than 15% of the Company's total revenue.
2. ****Suppliers****: The Company's key suppliers include Panasonic Corporation, CATL (Contemporary Amperex Technology Co. Limited), LG Chem Ltd., BHP Group, and Albemarle Corporation. The Company maintains diversified supply chains and has not experienced material disruptions in its procurement of raw materials or components. All supplier agreements are in good standing.

The Company has not entered into any new material customer or supplier agreements, nor terminated any existing material agreements, since the submission of its Company Profile and Asset Details documents.

5. Corporate Governance and Leadership

The Company declares the following with respect to its corporate governance and leadership:

1. ****Board of Directors****: The Company's Board of Directors, as of July 18, 2026, consists of the following individuals: Elon R. Musk, Robyn M. Denholm, Ira Ehrenpreis, Kimbal Musk, and James Murdoch. No changes to the Board have occurred since the submission of the Certificate of Incorporation.
2. ****Executive Leadership****: The Company's executive leadership team remains unchanged, with Elon R. Musk serving as Chief Executive Officer and Zachary J. Kirkhorn as Chief Financial Officer. All executive officers are in good standing and have not been subject to any disciplinary actions or investigations.
3. ****Related Party Transactions****: The Company conducts all related party transactions on an arm's-length basis and in compliance with applicable laws and corporate policies. No material related party transactions have occurred since the last disclosure.
4. ****Insider Transactions****: The Company complies with all insider trading laws and regulations. No insider transactions have occurred that would materially affect the Company's financial condition or creditworthiness.

Governance Item	Status
Board of Directors composition	Unchanged
Executive leadership	Unchanged
Related party transactions	Arm's-length basis
Insider transactions	Compliant

6. Insurance and Risk Management

The Company affirms the following regarding its insurance coverage and risk management practices:

1. ****Insurance Policies****: The Company maintains comprehensive insurance coverage, including but not limited to:

- General liability insurance with limits of \$1,000,000,000 per occurrence.
- Product liability insurance with limits of \$500,000,000 per occurrence.
- Property insurance covering all owned and leased facilities, with limits equal to the full replacement cost of insured assets.
- Directors and officers (D&O) liability insurance with limits of \$250,000,000.
- Cyber liability insurance with limits of \$100,000,000.

2. ****Risk Management****: The Company has implemented enterprise risk management (ERM) frameworks to identify, assess, and mitigate risks across its operations. Key risks, including supply chain disruptions, regulatory changes, and market volatility, are actively monitored and managed.

All insurance policies are current, and no material claims have been filed or are pending that could adversely affect the Company's financial condition.

7. Affirmations and Undertakings

The Company hereby affirms and undertakes the following:

1. ****Accuracy of Information****: The Company represents that all information provided in this credit application, including supporting documents, is true, accurate, and complete. The Company will promptly notify the lender of any material changes to the information provided herein.
2. ****Use of Proceeds****: Any credit extended to the Company will be used solely for lawful business purposes, including working capital, capital expenditures, and strategic initiatives, as disclosed in this application.
3. ****Continuing Disclosure****: The Company agrees to provide the lender with updated financial statements, material contracts, and other relevant information on a quarterly basis or as otherwise requested.
4. ****Compliance with Covenants****: The Company will comply with all financial and non-financial covenants agreed upon with the lender, including maintaining specified financial ratios and reporting requirements.
5. ****No Material Adverse Change****: The Company affirms that no event has occurred since the date of this application that could reasonably be expected to result in a material adverse change in its financial condition, operations, or ability to perform under the credit facility.

This document is executed by a duly authorized officer of Tesla Inc. on July 18, 2026.

Affirmation	Status
Accuracy of information	Confirmed
Lawful use of proceeds	Confirmed
Continuing disclosure obligations	Agreed
Compliance with covenants	Agreed
No material adverse change	Confirmed

8. Execution

IN WITNESS WHEREOF, Tesla Inc. has caused this Declarations document to be executed by its duly authorized officer as of the date first written above.

****Tesla Inc.****

By: _____

Name: Zachary J. Kirkhorn

Title: Chief Financial Officer

Date: July 18, 2026